

Small claims prep for roommate debt, evidence collection, legal liability guide — Action Checklist

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CALCULATE YOUR CLAIM

- ☐ **Calculate Your Claim:** List every category of money owed including rent shortfalls, utilities, shared household expenses, damage repairs, and any other financial obligations from your roommate agreement to establish the full scope of what you're owed.
- ☐ **Calculate Your Claim:** Assign specific dollar amounts to each expense item and multiply recurring costs like monthly rent and utilities by the number of months the roommate failed to pay to get an accurate total.
- ☐ **Calculate Your Claim:** Categorize each claimed expense as documentable, partially documentable, or estimate-only based on whether you have receipts and records, because only documentable claims will hold up firmly in court.
- ☐ **Calculate Your Claim:** Verify your state's statute of limitations before proceeding further because claims filed after this deadline get dismissed automatically regardless of how valid they are.

GATHER YOUR EVIDENCE

- ☐ **Gather Your Evidence:** Collect all receipts, bank statements, transaction records, written agreements, and Venmo or payment app screenshots that support each documentable line item in your claim because judges require proof, not promises.
- ☐ **Gather Your Evidence:** Organize your evidence into categories matching your expense list so you can present a clear, logical case to the judge without fumbling through documents during the hearing.
- ☐ **Gather Your Evidence:** Document partial evidence for partially documentable claims by capturing whatever screenshots, messages, or records you do have and acknowledging their limitations honestly to the court.
- ☐ **Gather Your Evidence:** Identify any estimate-only claims and decide whether to include them as a credibility gamble or exclude them entirely to avoid weakening your stronger documented claims.

SEND THE DEMAND LETTER

- ☐ **Send the Demand Letter:** Draft a formal written demand letter addressed to your former roommate that specifies the exact amount owed, itemizes the debt, and requests payment within a reasonable timeframe to create an official legal record.
 - ☐ **Send the Demand Letter:** Send the demand letter via certified mail with return receipt requested so you have proof it was delivered and the recipient cannot claim they never received notice.
 - ☐ **Send the Demand Letter:** Keep a copy of the demand letter and delivery confirmation in your evidence file because it demonstrates that you attempted reasonable resolution before filing a claim.
 - ☐ **Send the Demand Letter:** Allow the deadline in your demand letter to pass without payment before proceeding to file your small claims court case, because this shows the judge you exhausted good-faith efforts to resolve the dispute.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.